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Case Number: 24CHCV00740 Hearing Date: July 16, 2026 Dept: F43

Dept. F43

Hearing Date: 07-16-26

Case # 24CHCV00740, Alaverdyan v.

Hovsepyan

Trial Date: N/A

MOTION TO SET ASIDE A

JUDGMENT, VACATE A DEFAULT, AND QUASH SERVICE OF SUMMONS

MOVING PARTY: Specially appearing defendant Artu Hovsepyan

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Order setting aside the default judgment,
vacating the default, and quashing service of the summons and complaint.

RULING: Motion to quash is denied. Motion to set aside the default judgment is
granted. Motion to vacate the default is
granted.

SUMMARY OF ACTION

This personal injury action arises from a

vehicle collision involving plaintiff Harutyun Alaverdyan (Plaintiff) and defendant Artur Hovsepyan (Hovsepyan).

Plaintiff alleges he was a passenger in a vehicle driven by Hovsepyan on July 21, 2023, and that Hovsepyan was driving under the influence of alcohol, lost control of the vehicle, and crashed into another vehicle. As a result, Plaintiff suffered serious injuries requiring continued medical treatment.

On March 7, 2024, Plaintiff filed a complaint, asserting motor vehicle and negligence causes of action.

Default was entered against Hovsepyan on July 30, 2025. The default package was served by mail to same North Hills address on July 29, 2025. On November 17, 2025, Plaintiff mailed a default judgment package to Hovsepyan at the same North Hills address. The court record indicates judgment by default was entered against Hovsepyan on November 21, 2025.

On May 15, 2026, Hovsepyan specially appeared and moved to set aside the default judgment, vacate the default, and quash service of the summons and complaint. The court denied the motion without prejudice. (6/18/26 Minute Order.) Hovsepyan filed a renewed motion on June 18, 2026, asserting the judgment is void because the summons and complaint could not have been served on Hovsepyan as stated in the proof of service. At the time of service, Hovsepyan, a citizen of Armenia, was not the United States. Hovsepyan voluntarily left the United States in November of 2023 when his visa expired and never returned.

Plaintiff filed an opposition on July 2, 2026, asserting Hovsepyan's narrative is unsupported by evidence. According to Plaintiff, Hovsepyan returned a signed notice of acknowledgment and receipt of the summons and complaint on July 17, 2025. Hovsepyan's signature demonstrates actual receipt and actual notice. Moreover, Hovsepyan fails to demonstrate the judgment is void because the proof of service indicates he was served in the manner prescribed by statute. Foreign citizenship and Hovsepyan's absence from the United States do not render substitute service void. Finally, Hovsepyan's insurer had notice of this action. No reply was filed.

ANALYSIS

A. Timeline of Relevant Events

On July 5, 2023, U.S. Immigration Judge Sandra Santos-Garcia entered an order granting Hovsepyan voluntary departure in lieu of removal pursuant the Immigration and Nationality Act § 240B(a), requiring him to leave the United States no later than November 2, 2023. (Declaration of E. Richard McGuire ¶ 3, Exh. A.)

On July 21, 2023, the alleged vehicle incident occurred.

In November of 2023, Hovsepyan left the United States. (Declaration of Jack Tadevosyan ¶ 6.)

On March 7, 2024, Plaintiff filed this action.

On March 9, 10, and 11, 2025, registered process server Rui Cordeiro attempted to personally service Hovsepyan at 8607 Aqueduct Ave., North Hills CA 91343. (5/16/26 Proof of Substituted Service at p. 3 [Declaration of Due Diligence].) No one answered.

On March 15, 2024, Plaintiff's counsel emailed State Farm Insurance, Hovsepyan's insurer, to inform them the lawsuit was filed. (Declaration of Kaelan T. Nielsen, Exh. B.) Attached to the email is a Demand for Jury Trial, Notice of Case Assignment, Summons, Complaint, and Civil Case Cover Sheet.

On May 12, 2025, Hovsepyan was supposedly served by substituted service to a co-occupant Joe Doe around 3:05 p.m. at 8607 Aqueduct Ave., North Hills, CA 91343. (5/16/26 Proof of Substituted Service.) The process server mails the documents to the same address that same day.

On July 17, 2025, Hovsepyan returned a signed notice of acknowledgement and receipt of the summons and complaint. (Nielsen Decl., Exh. A.)

On July 30, 2025, the Clerk of the court enters default against Hovsepyan. (7/30/26 Request for Entry of Default.)

The default package was served by mail to same North Hills address on July 29, 2025.

On November 17, 2025, Plaintiff mailed Hovsepyan the default judgment package at the same North Hills address. On November 21, 2025, the court entered default judgment for Plaintiff against Hovsepyan for \$101,097.26 (damages of \$100,213.36 and costs of \$883.90). (11/17/25 Request for Entry of Default/Judgment.)

B. Quash Service of Summons

A defendant may file and serve a notice of motion to quash service of summons on grounds that the court lacks jurisdiction, e.g., because service was improper. (Code Civ. Proc., § 418.10, subd. (a); see *Tresway Aero, Inc. v. Superior Court* (1971) 5 Cal.3d 431, 433; *County of Riverside v. Superior Court* (1997) 54 Cal.App.4th 443, 446.)² The motion must be filed and served on or before the last day to plead or within any further time the court may for “good cause” allow. (Code Civ. Proc., § 418.10, subd. (a).) “The effect of [the motion] is to place upon the plaintiff the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.” (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868, citation omitted.)

The defendant must attach evidence such as affidavits and declarations to support its motion. (See *Aquila, Inc. v. Superior Court* (2007) 148 Cal.App.4th 556, 563.) “On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts.” (*Nobel Floral, Inc. v. Pasero* (2003) 106 Cal.App.4th 654, 657-58 [citations omitted].) “Evidence Code section 647 provides that a registered process server’s declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration.” (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390, citation omitted.) To rebut this presumption, the defendant must attach evidence such as affidavits and declarations to support the motion. (See *Aquila, Inc. v. Superior Court* (2007) 148 Cal.App.4th 556, 563.)

“A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery.”

(Code Civ. Proc., § 415.10.) If a

copy of the summons and complaint cannot be personally delivered, even after

reasonable diligence, service may occur through substitute service. (Code Civ. Proc., § 415.20, subd. (b).) To serve a summons and complaint by

substitute service, the plaintiff must (1) leave a copy of the summons and

complaint “at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address”; (2)

with “a competent member of the household or a person apparently in charge of the [person’s] office, place of business, or usual mailing address” who is at least “18 years of age”; and (3) mail a

copy of the summons and complaint to the person to be served at the place where a copy of the summons and complaint were left.

(Code Civ. Proc., § 415.20, subd. (b).)

The individual served must “be informed of the contents” of the summons, complaint, and accompanying documents. (Id.)

Pursuant to Evidence Code section 647, a

California registered process server’s declaration of service creates a

rebuttable presumption that proper service occurred. (Evid. Code, § 647; see *American Express Centurion Bank*, supra, 199 Cal.App.4th at p. 390.) However,

opposing evidence, such as a declaration of non-service, can rebut the presumption. (*Chinese Theater, LLC v.*

Starline Tours USA, Inc. (2025) 115 Cal.App.5th 1048 [338 Cal.Rptr.3d 590, 698]; *Fernandes v. Singh* (2017)

16 Cal.App.5th 932, 941 fn. 6; Evid.

Code, § 647.)

Here, Rui Cordeiro, is a registered

California process server. (5/16/25

Proof of Substituted Service at p. 2, § 7(e)(3).) Cordeiro states he attempted to serve

Hovsepyan on four occasions at the 8607 Aqueduct Ave. address. (5/16/26 Proof of Substituted Service at p. 3, § 3 [Declaration of Due Diligence].)

On March 9, 2025 at 7:09 p.m., no one answered. On March 10, 2025 at 7:23 a.m., no one answered. On March 11, 2025 at 11:54

a.m., no one answered. On May 12, 2025

at 3:05 p.m., Cordeiro claims he served Hovsepyan by substituted service

through a “John Doe” co-occupant who refused to give his name. (Id. at p. 1, § 5(b).) Cordeiro describes the individual served as

“W, M, 40s, 5'9”, 200lbs.” That same

day, Cordeiro mailed a copy of the summons and complaint to the same address by first-class, postage prepaid mail.

Hovsepyan presents evidence which

demonstrates Hovsepyan could not have been served by substituted service or

mail because he was not in the United States when service occurred. Hovsepyan’s son in law, Jack Tadevosyan,

states Hovsepyan is a citizen of Armenia and is not a citizen of the United

States. (Declaration of Jack Tadevosyan

¶ 4.) On July 5, 2023, U.S. Immigrant

Court Judge Sandra Santos-Garcia entered an order for “pre-conclusion voluntary

departure under Immigrant and Nationality Act (INA) § 240B(a),” which required Hovsepyan

to leave the United States on or before November 2, 2023. (Declaration of E. Richard McGuire, Exh. A at

p. 1.) According to Hovsepyan’s attorney

and Mr. Tadevosyan, Hovsepyan returned to Armenia before November 2, 2023 and

was not residing in the United States when service occurred. (Id. ¶ 5; Tadevosyan Decl. ¶ 8.) Hovsepyan’s counsel further states no

proceedings have been opened, convened, or reconvened against Hovsepyan for his

return to the United States. (McGuire

Decl. ¶ 4.)

Based on Hovsepyan’s evidence, the North

Hills address was not his “dwelling house” or “usual place of abode” at the

time of service. (Code Civ. Proc., §

415.20, subd. (b); Lebel v. Mai (2012) 210 Cal.App.4th 1154, 1162-1164; Zirbes

v. Stratton (1986) 187 Cal.App.3d 1407, 1416-1418.) Therefore, the evidence is sufficient to

demonstrate substitute service of process did not provide Hovsepyan with notice

of this action. Hovsepyan does not

challenge or dispute the form.

In opposition, Plaintiff’s counsel presents a

copy of a Notice and Acknowledgment of Receipt form which indicates an

individual named “Arthur Hovsepyan” signed the document on July 17, 2025. (Nielsen Decl., Exh. A.)

Code of Civil Procedure section 415.30 provides

a separate and independent method of service by mail. A summons may be served by mailing a copy of

the summons and complaint to the person to be served, together with two copies

of a notice and acknowledgment form and a prepaid return envelope. (Code Civ. Proc., § 415.30, subd. (a).) Service

is then deemed complete on the date a written acknowledgment of receipt of summons is executed if the acknowledgement is returned to the sender. This alternative method "may be used to deliver process to anyone within or outside [California]." (Johnson & Johnson v. Superior Court (1985) 38 Cal.3d 243, 247, fn. 3.)

No proof of service has been filed demonstrating service occurred "By Mail and Acknowledge of Receipt of Service." Plaintiff claims the form was not separately filed with the court because Plaintiff believed service had already been accomplished by substitute service.

(Opposition at p. 4:9-11.) But

Plaintiff fails to explain how, when, and where the document was served on Hovsepyan, proof that the form was actually served on Hovsepyan by mail or substitute service, and fails to provide a supporting declaration from the process server who supposedly mailed the form to Hovsepyan on July 1, 2025. (Nielsen Decl., Exh. A.)

However, the failure to file a proof of service does not mean that service was not completed because the proof of service is the evidentiary mechanism by which a plaintiff demonstrates service occurred. Here, the signed and returned acknowledgement form presented in opposition to the motion to quash is sufficient evidence that service was effectuated and Hovsepyan had actual notice of this action. (ParaFi Digital Opportunities, LP v. Egorov (2025) 108 Cal.App.5th 123, 133-134.)

Because Plaintiff demonstrates Hovsepyan acknowledged being served with the summons and complaint and having actual notice of this matter no later than July 17, 2025, the court finds that service was properly effectuated by mail.

Therefore, the court denies Artur Hovsepyan's motion to quash service of the summons and complaint.

The court orders Plaintiff to file a valid proof of service, indicating service of the summons and complaint by mail.

C. Vacating Judgment Pursuant to Code Civ. Proc., § 473, subd. (d)

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders

as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).) The law favors hearings on the merits, so any doubts as to the application of section 473 should be resolved in favor of the party seeking relief from default. (See *Shapiro v. Clark* (2008) 164 Cal.App.4th 1128, 1139-1140.)

A party has six months after judgment is entered to file a motion to set aside the judgment. (Code Civ. Proc., § 473, subd. (b).) If a judgment is void on its face, the six-month time limit does not apply. (Code Civ. Proc., § 473 subd. (d); see *Calvert v. Al Binal* (2018) 29 Cal.App.5th 954, 960.)

Under section 473, subdivision (d), a judgment or order is void on its face when the invalidity is apparent upon an inspection of the judgment roll without consideration of extrinsic evidence. (*Morgan v. Clapp* (1929) 207 Cal. 221, 224; *Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.) In cases where the defendant has not answered the complaint, the judgment roll consists of "the summons, with the affidavit or proof of service; the complaint; the request for entry of default with a memorandum indorsed thereon that the default of the defendant in not answering was entered, and a copy of the judgment[.]" (Code Civ. Proc., § 670, subd. (a).)

A Section 473, subdivision (d) motion to vacate a void judgment for lack of proper service is not subject to any time limitation. (*California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 215-216.) Furthermore, a default judgment entered against a defendant not served in the manner prescribed by statute is void. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1434, 1443-1444; *Braugh v. Dow* (2023) 93 Cal.App.5th 76, 87-89.)

Here, the judgment roll indicates the summons and complaint were served by substituted serve to an address where Plaintiff believed Hovsepyan resided while he was within the country. However, Hovsepyan was not in California at the time of service.

"[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service." (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544 [citing Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444; Brown v. Williams (2000) 78 Cal.App.4th 182, 186-187, fn. 4].)

Although Plaintiff has demonstrated service was deemed complete in the manner prescribed by Code of Civil Procedure section 415.30 when Hovsepyan signed and returned the Notice of Acknowledgement, Plaintiff has failed to file both the signed notice and a corresponding proof of service in the court record.

Based on the proof of service filed in the court record service was improper, and the default and default judgment are void.

Therefore, the court grants Artur Hovsepyan's motion to set aside the default judgment and to vacate the default.

CONCLUSION and ORDER

Motion to quash service of the summons and complaint is denied.

Motion to set aside the default judgment is granted.

Motion to vacate the default is granted.

Artur Hovsepayn is ordered to file a responsive pleading within ten (10) days of the issuance of this order.

Clerk of the Court to give notice.